

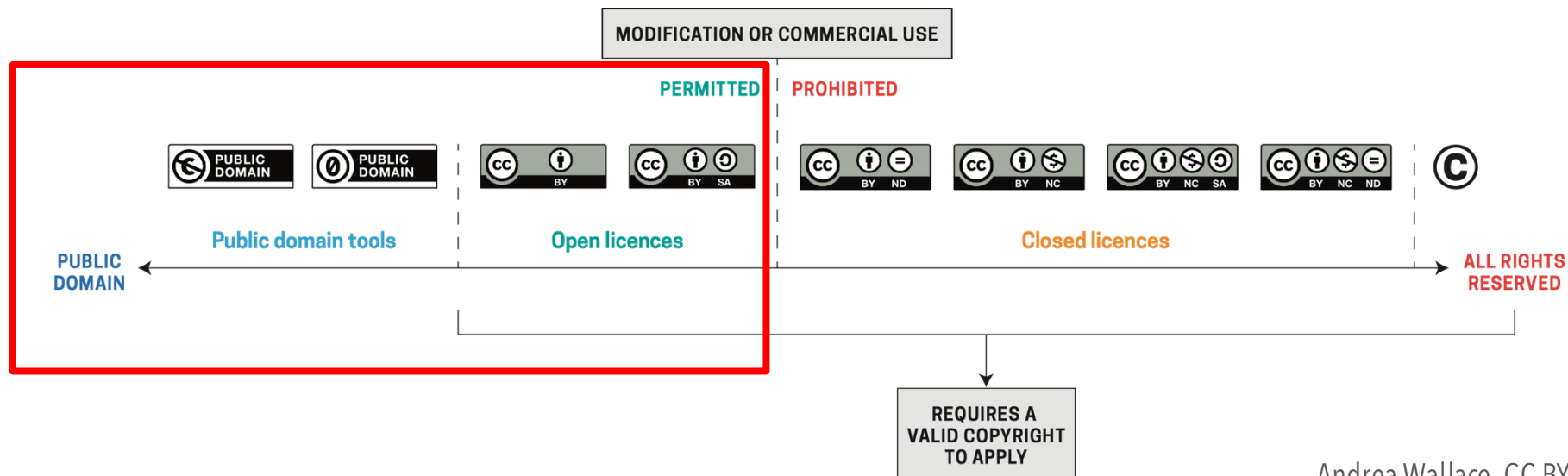
OPEN TO CRITICAL INTERPRETATION: Emerging legal issues, opportunities, and unknowns in open movements and the humanities

Andrea Wallace, Reader in Law & UK Director of the GLAM-E Lab
University of Warwick

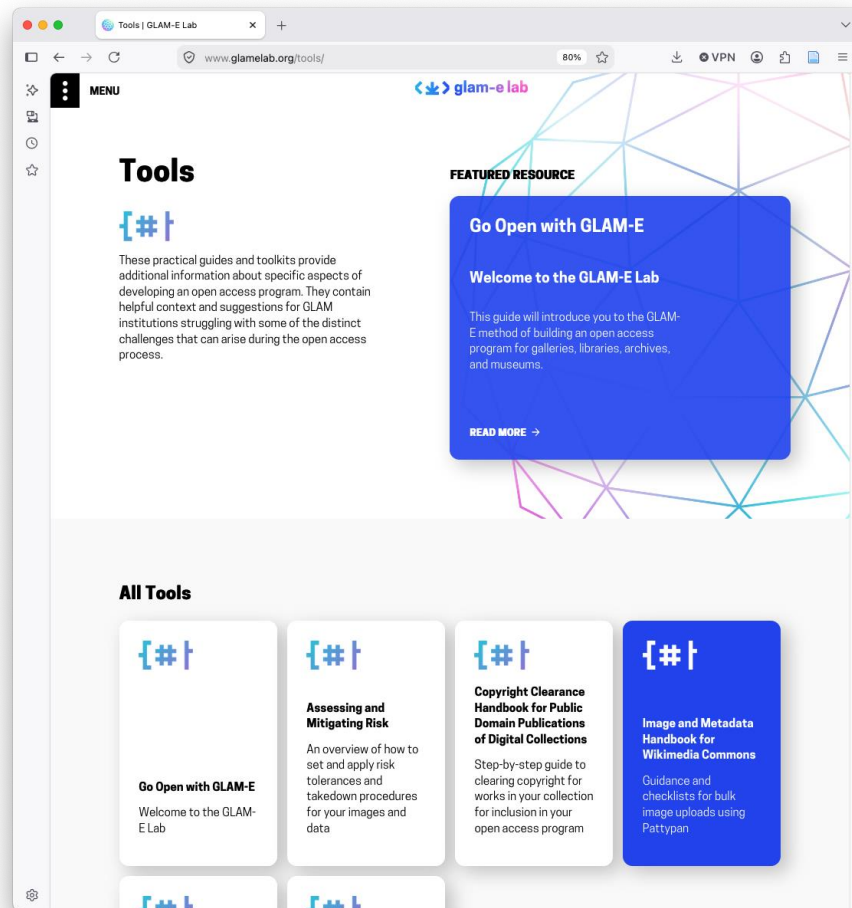
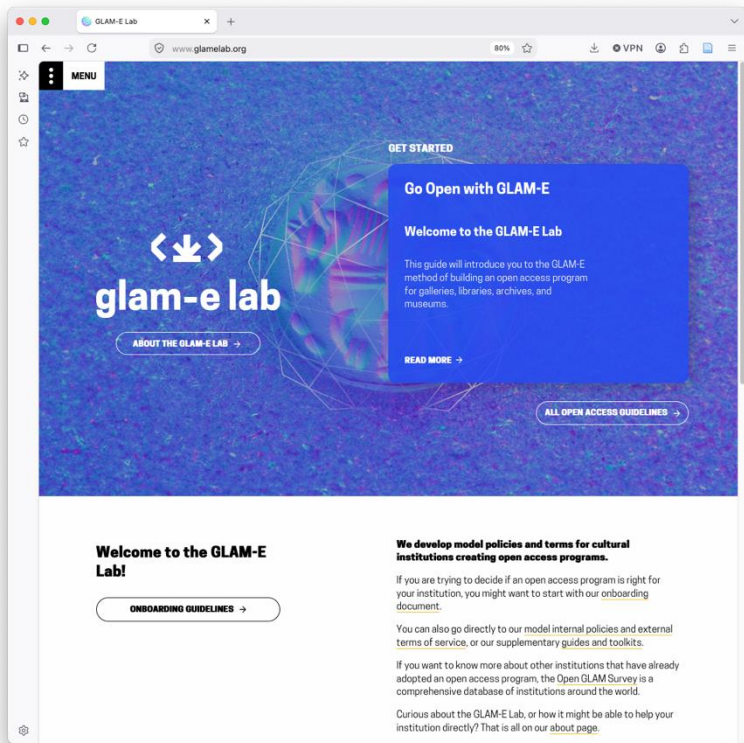
What is *open*?

"Knowledge is open if anyone is free to access, use, modify, and share it – subject, at most, to measures that preserve provenance and openness."

Bethesda Statement, Budapest Initiative, Berlin Declaration, Open Knowledge Foundation, etc.

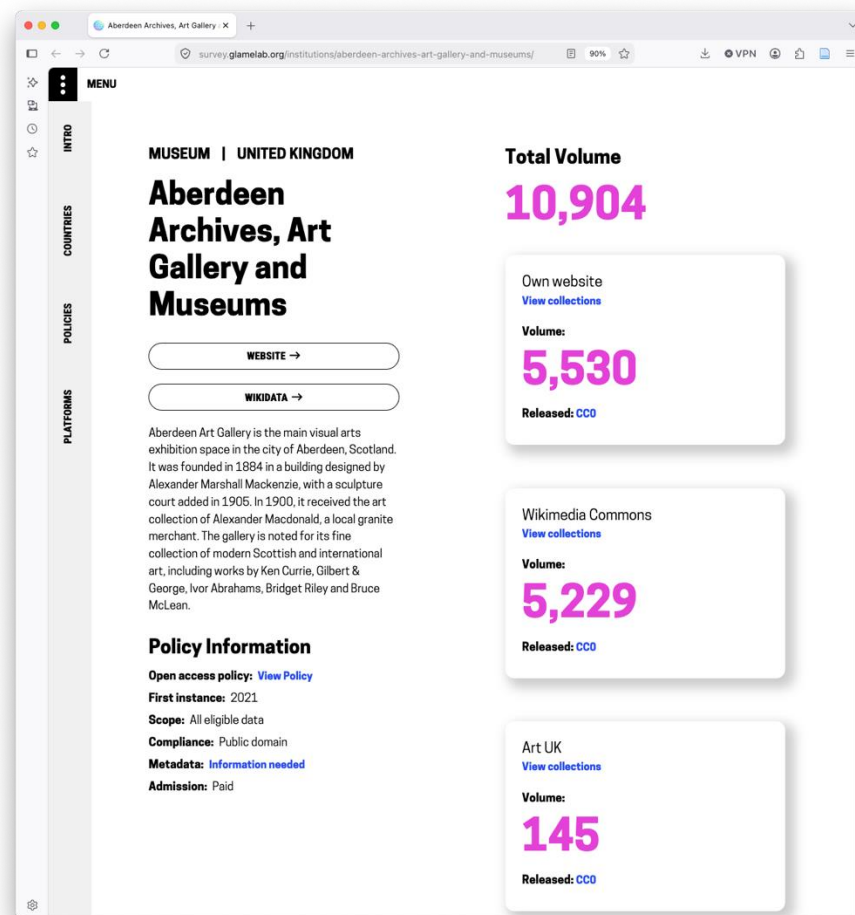
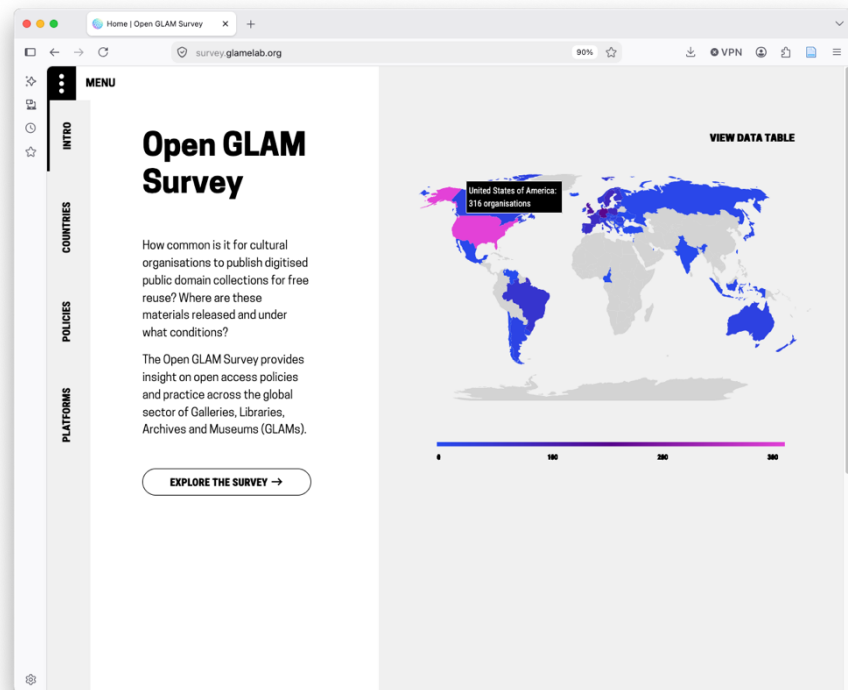


What is open GLAM?



Open GLAM Toolkit, <https://www.glamelab.org/>

What is *open* GLAM?



Open GLAM Survey, <https://survey.glamelab.org>

What does the data show us?

The screenshot shows a web application interface for displaying institutions. On the left is a sidebar with a 'MENU' button and categories: INTRO, COUNTRIES, POLICIES, and PLATFORMS. The main content area is titled 'Institutions' and shows 'Displaying 1720 institutions.' Below this is a 'Search and Filters' section with a search bar, a 'Country' dropdown, a 'Type' list of checkboxes, an 'Open access scope' dropdown, and a 'Platform' dropdown. The main table lists institutions with columns for Institution, Country, Type, and Compliance.

Institution	Country	Type	Compliance
2Culture Associates	United Kingdom	Other	Open
A. Baranauskio ir A. Vienuolio-Žukausko memorialinis muziejus	Lithuania	Museum	Open
A.H. Tammsaare Muuseum Vargamäel	Estonia	Museum	Public domain
Aalto yliopiston arkisto	Finland	University	Disclaimer
ABC Open Archives	Australia	Archive	Open
Aberdeen Archives, Art Gallery and Museums	United Kingdom	Museum	Public domain
Aberdeen City Council Collection	United Kingdom	Government	Public domain
Aberdeen Maritime Museum	United Kingdom	Museum	Public domain
Abilene Christian University Library	United States of America	Library	Public domain
Abilene Library Consortium	United	Library	Public domain

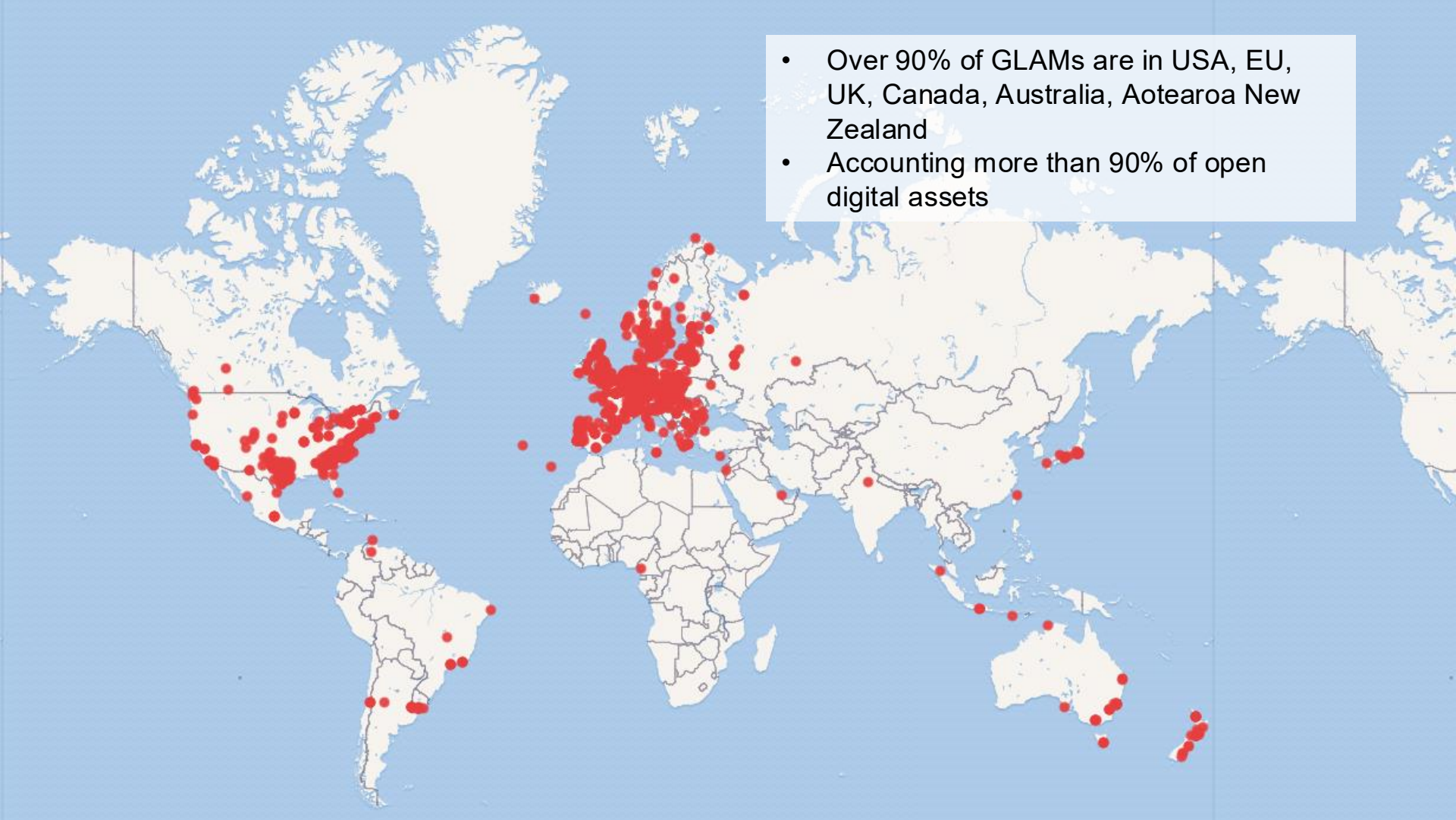
Survey says...

- 1,720 GLAMs
- 55 countries
- 106 million open assets (Public Domain, CC0, CC BY, CC BY-SA & equivalents)

...less than 1% of cultural institutions globally

<https://survey.glamelab.org/institutions>

- Over 90% of GLAMs are in USA, EU, UK, Canada, Australia, Aotearoa New Zealand
- Accounting more than 90% of open digital assets



What does this mean for [the humanities]?

Epistemological challenges

What are the colonial assumptions that underpin open movements and 'knowledge' systems?

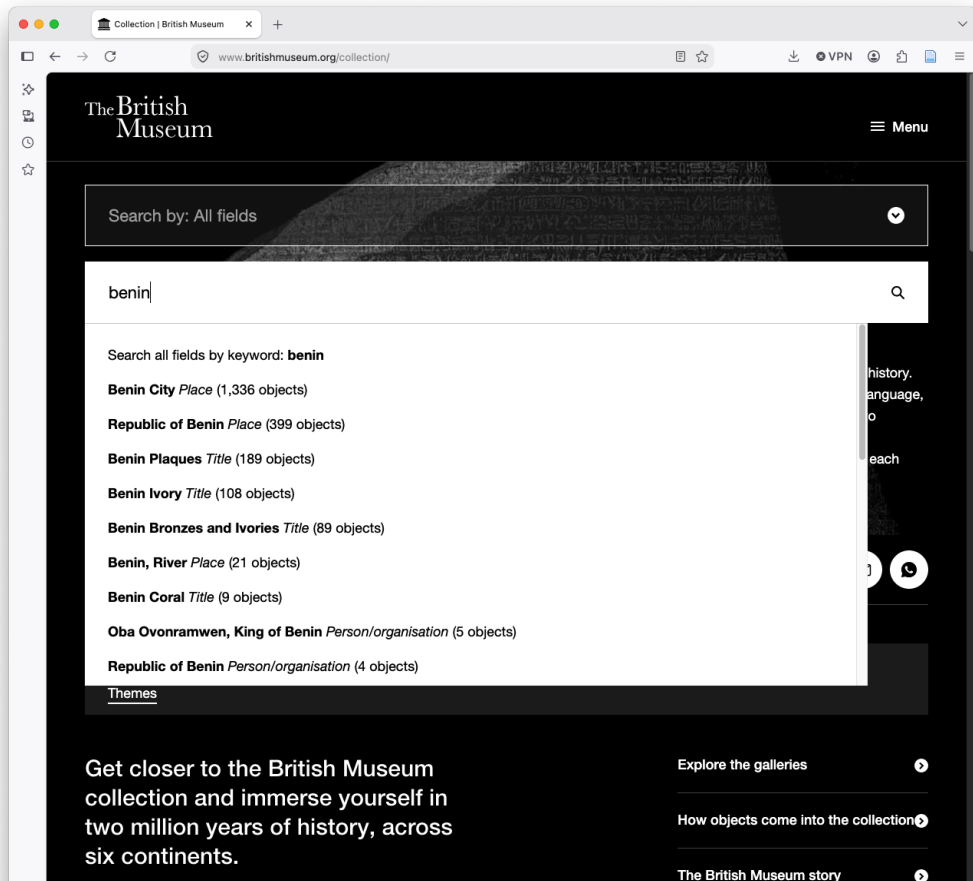
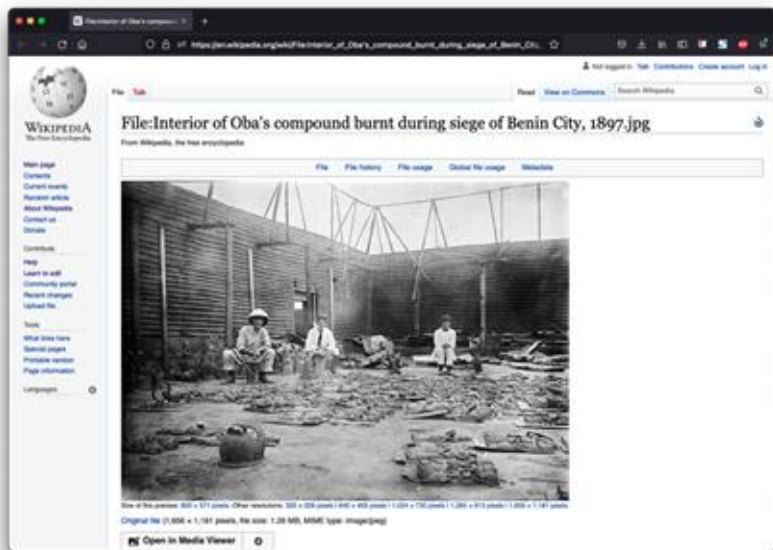
Data governance

What are the possibilities of data governance when systems (open or otherwise) do not build upon the defaults of colonialism?

... and artificial intelligence (#sorry)

What are the alternatives in a landscape of increasing normalisation and deployment of AI?

Acts of dispossession >> colonial assumptions of ownership



Copyright as a colonial invention



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- > What's on
- > Research
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British Museum shop >



The progress of a rake, exemplified in the Adventures of Ramble Gripe Esq son of Sir Positive Gripe Resorts to a gaming table and is ruined by sharpers. 1878, 0914.6, AN197037001

Using digital images of objects in the collection

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https://www.britishmuseum.org/join_in/using_digital_images/using_digital_images.aspx?asset_id=197037001&objectid=1663610&partid=1

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Hoa Hakananai'a ('lost or stolen friend') Moai (ancestor figure)
Oc1869,1005.1,
AN12842001

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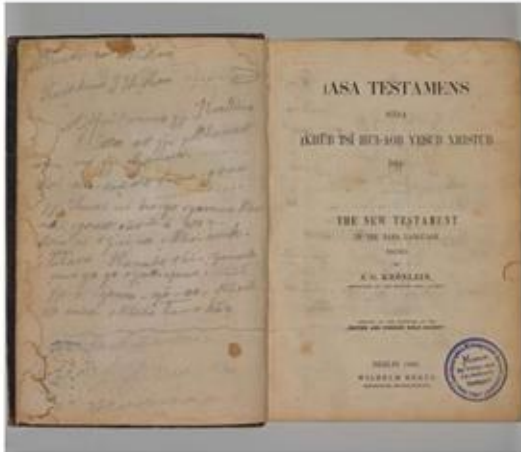
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Digitisation and intellectual property are not neutral

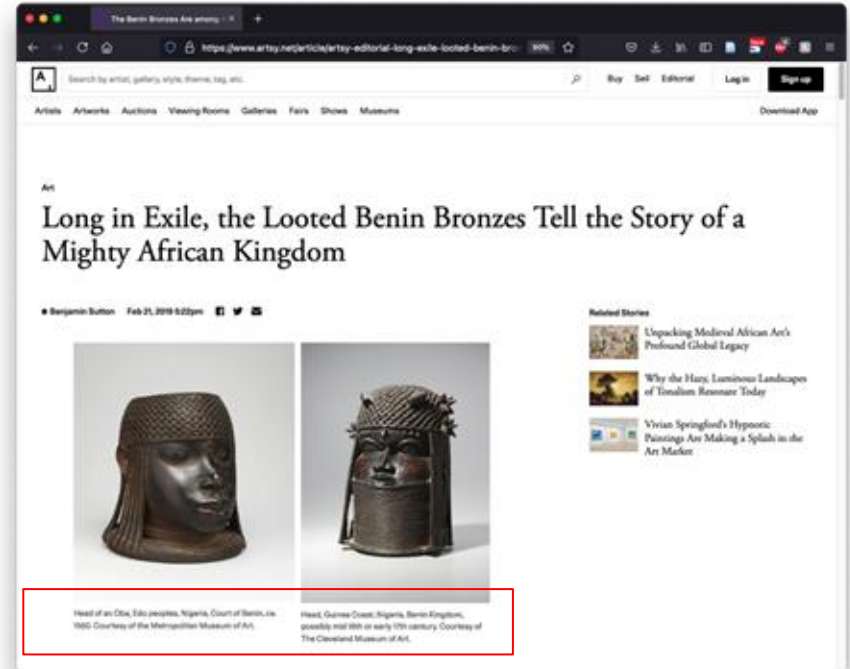
German museum returns stolen colonial era artifacts

After more than a century, a bible and whip belonging to folk hero Hendrik Witbooi has been returned to his native Namibia. A Linden Museum expert tells DW how this restitution decision could set a new precedent.



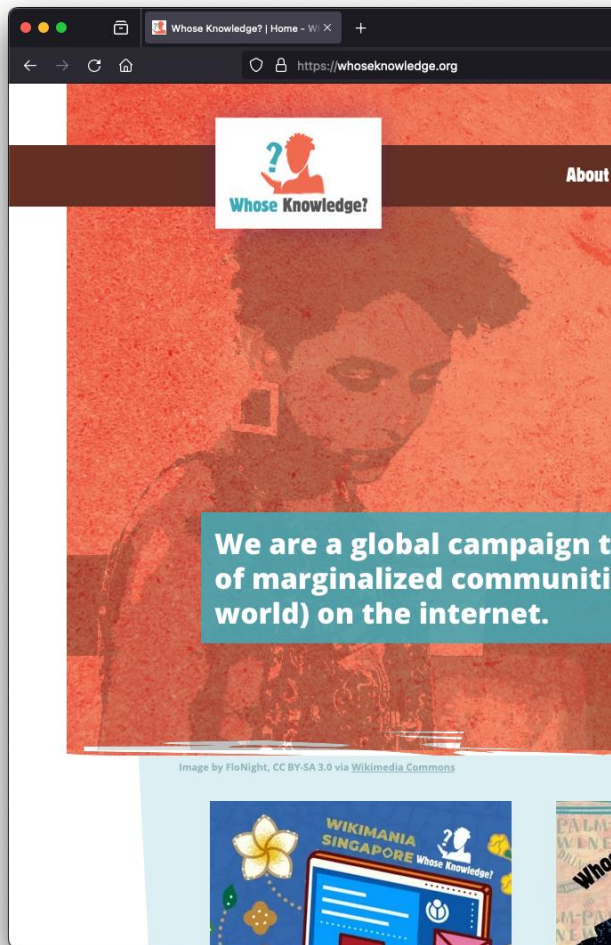
© Linden-Museum Stuttgart/D. Draschow

© Linden-Museum Stuttgart/D. Draschow



Head of an Oba, Edo peoples, Nigeria, Court of Benin, ca. 1550.
Courtesy of the Metropolitan Museum of Art.

Head, Guinea Coast, Nigeria, Benin Kingdom, possibly mid 16th or early 17th century. Courtesy of the Cleveland Museum of Art.



Knowledge infrastructures:

The design, architecture, and governance of the internet's "global" platforms and tools rarely include women, people of color, and people from the Global South (Africa, Asia and the Pacific Islands, Latin America and the Caribbean).

- › Over 58% of the world's population accesses the internet today.
- › 75% of those online are from the Global South.
- › 45% of all women are online.

Yet the perspectives of primarily white, straight, North American men dictates how our knowledge infrastructures are created and managed. This means that the internet's platforms, policies, and protocols are created for and decided by the "local" context of the United States, making the "local" of the United States the (far too often unquestioned) "global" of the rest of the world. For example, even as Twitter tries to "fact check" how indigenous communities are appropriately addressed, its [curation style guide](#) only describes populations in the US, Canada, and Australia, without any mention of the range and diversity of the [370 million indigenous peoples](#) across 70 countries worldwide. Similarly, so-called "[artificial intelligence](#)" or [machine learning](#) platforms notoriously replicate systemic biases as they use datasets that are primarily based on white men. By not having the majority of the world included in the creation of our knowledge infrastructures, examples such as these will continue to exist.

Knowledge creation and curation

The majority of knowledge available online is textual, in English, and created or curated by a select few.

- › Of the 7000+ languages of the world, only 480 of them are represented in the [history of publishing](#) and a few hundred are represented on the internet.
- › English and Chinese dominate general online content.
- › Most scholarly (including digitally accessed) publications are in English. Approximately 80% of all scientific journals and 90% of all social science journals indexed on Scopus and JSTOR are published in English.
- › Only a thin slice of the collective body of human knowledge is textual: knowledge is primarily oral, visual, tactile or embodied. But while the internet has the potential to represent multiple forms of knowledge through multimedia, the hegemony of US and European institutions has led to text-dominant digital platforms and knowledge spaces.

Public, online knowledge looks as it does because the majority of the internet's users are not its producers. Take Wikipedia for example, the "world's" encyclopedia: only 20% of the world (primarily white male editors from North America and Europe) edits 80% of Wikipedia currently, and only 1 in 10 of the editors is female. The result is that there are more articles written about Antarctica than about most countries in Africa. So just as everyone should have access to the internet, everyone should be able to consume and produce knowledge in the languages and forms that best express their human creativity, curiosity and experience.

UN Declaration on the Rights of Indigenous Peoples 2007

The right to “to maintain, control, protect and develop their cultural heritage, traditional knowledge and traditional cultural expressions, as well as the manifestations of their sciences, technologies and cultures”

Article 11

1. Indigenous peoples have the right to practise and revitalize their cultural traditions and customs. This includes the right to maintain, protect and develop the past, present and future manifestations of their cultures, such as archaeological and historical sites, artefacts, designs, ceremonies, technologies and visual and performing arts and literature.
2. States shall provide redress through effective mechanisms, which may include restitution, developed in conjunction with indigenous peoples, with respect to their cultural, intellectual, religious and spiritual property taken without their free, prior and informed consent or in violation of their laws, traditions and customs.

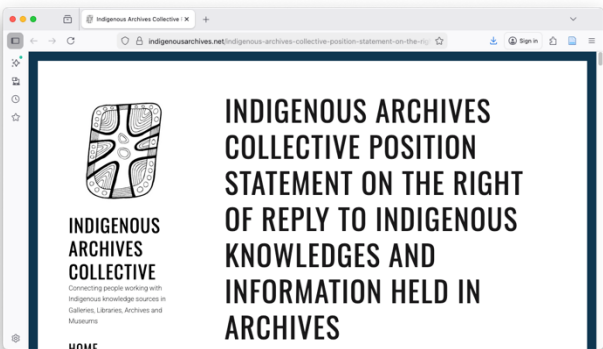
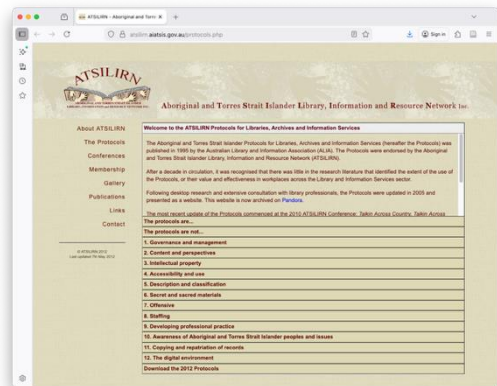
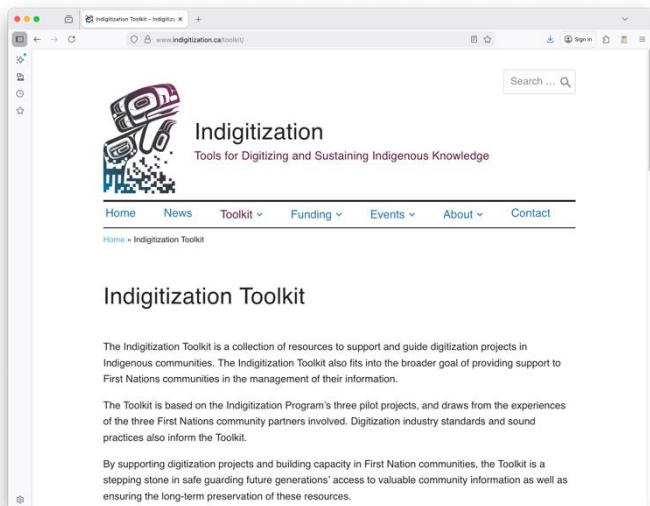
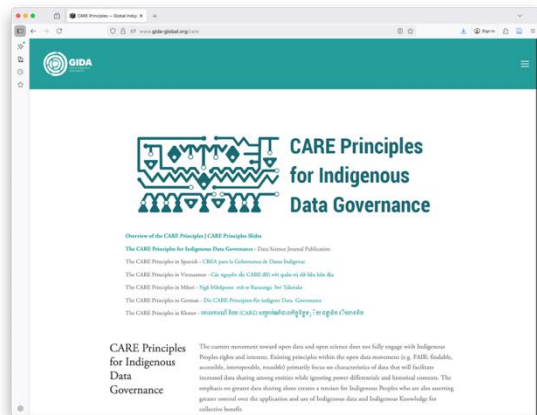
Article 12

1. Indigenous peoples have the right to manifest, practise, develop and teach their spiritual and religious traditions, customs and ceremonies; the right to maintain, protect, and have access in privacy to their religious and cultural sites; the right to the use and control of their ceremonial objects; and the right to the repatriation of their human remains.
2. States shall seek to enable the access and/or repatriation of ceremonial objects and human remains in their possession through fair, transparent and effective mechanisms developed in conjunction with indigenous peoples concerned.

Article 31

1. Indigenous peoples have the right to maintain, control, protect and develop their cultural heritage, traditional knowledge and traditional cultural expressions, as well as the manifestations of their sciences, technologies and cultures, including human and genetic resources, seeds, medicines, knowledge of the properties of fauna and flora, oral traditions, literatures, designs, sports and traditional games and visual and performing arts. They also have the right to maintain, control, protect and develop their intellectual property over such cultural heritage, traditional knowledge, and traditional cultural expressions.
2. In conjunction with indigenous peoples, States shall take effective measures to recognize and protect the exercise of these rights.

Global developments at organizational and industry levels



Global developments at national levels

Aotearoa New Zealand

Operates under a bi-cultural constitution as national basis for all public services and infrastructure, Te Tiriti o Waitangi Treaty of Waitangi 1840

Canada

Implemented the United Nations Declaration on the Rights of Indigenous Peoples Act in 2021

United States

2024 revisions to the Native American Graves Protection and Repatriation Act 1990 including “free, prior, and informed consent” for display

Australia

Working towards stand-alone legislation to protect Indigenous Cultural and Intellectual Property (ICIP) and recognise Indigenous data sovereignty

...and in Europe?

Cross-border considerations

- France
- Germany
- Netherlands
- Austria
- UK
- Etc



[Table of Contents](#) [Book Description](#) [Critics' Reviews](#)

1st Edition

The Indigenous Right of Reply to Archives

Working towards Indigenous Sovereignty, Healing, and Justice in Archival Practice

Edited By The Indigenous Archives Collective
Copyright 2026

Intellectual Property Restitution: why, what, how

Using intellectual property as a lens to identify the “echo” in the collection

Images, audio, video, photogrammetry, photography, scans, renderings, metadata, data, research datasets, provenance data, donor and acquisition agreements, contracts, other legal documents, exhibition catalogues, academic papers, curatorial notes, newspaper clippings, personal correspondence, and so on

Why

Restitution is incomplete without a full return of all relevant materials to the individual/descendants/communities of origin

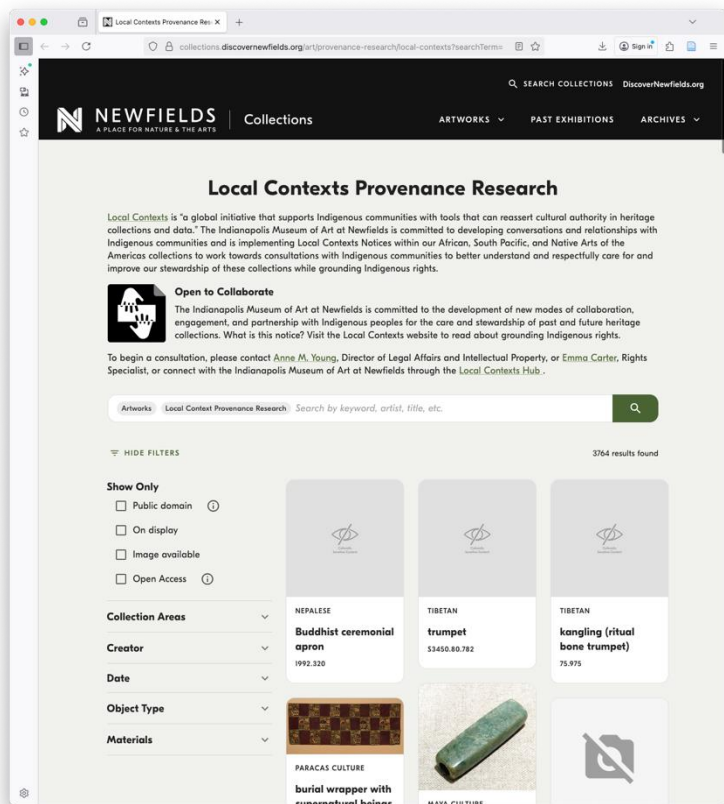
What

A strategy rooted in epistemic justice to return any materials and rights generated around an object from the moment of dispossession

How

Flexibilities in private law and existing practices in collections management

Indianapolis Museum of Art at Newfields, USA



TRANSFER OF KNOWLEDGE

Page 1 of 1

Released By: Newfields, Inc. (hereafter "Newfields")
4000 Michigan Road
Indianapolis, IN 46208-3326
USA

Transferred To: [insert Community name] (hereafter "Community")
[insert street address]
[insert city, state, zip]
[insert country]

Receiving Individual: [insert representative name]
[insert institution/company name]
[insert street address]
[insert city, state, zip]
[insert country]

Regarding: [insert description]

Prepared By: [insert name(s)]

RELEASE

All Items Released under this Transfer of Knowledge are transferred in perpetuity from Newfields to the permanent care of the Community, or to their authorized representatives. This Transfer of Knowledge will serve as documentation of the return to the Community. If any corrupted or damaged files are found in the Items Released, Newfields will make every effort to identify an alternate transfer method to send intact file(s) to the Community in a timely manner.

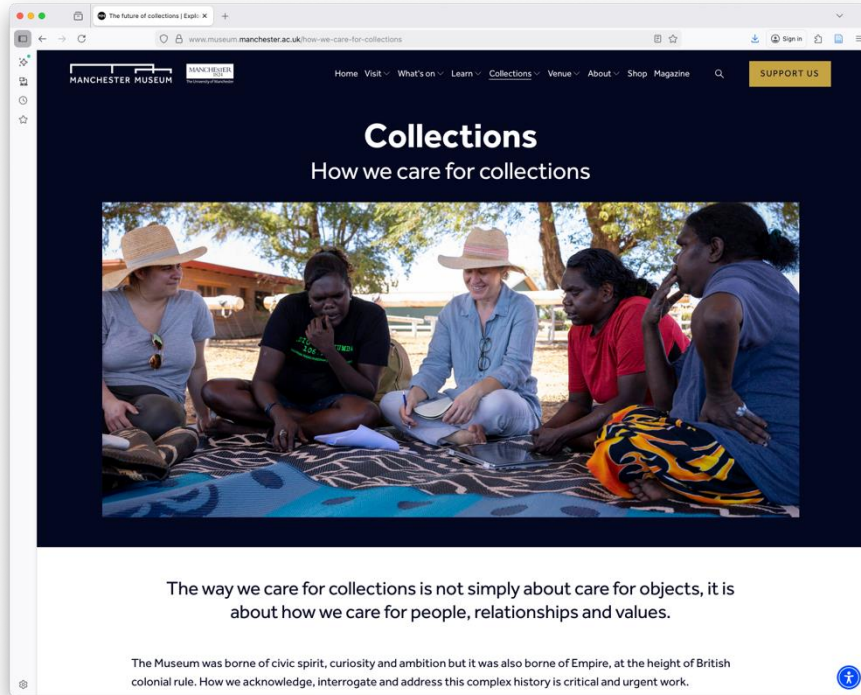
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ITEMS RELEASED*

- Historical File Documentation
- Gallery Label and/or Didactic Text
- Image and/or Video Files
- [insert other item(s) released]
- [insert other item(s) released]

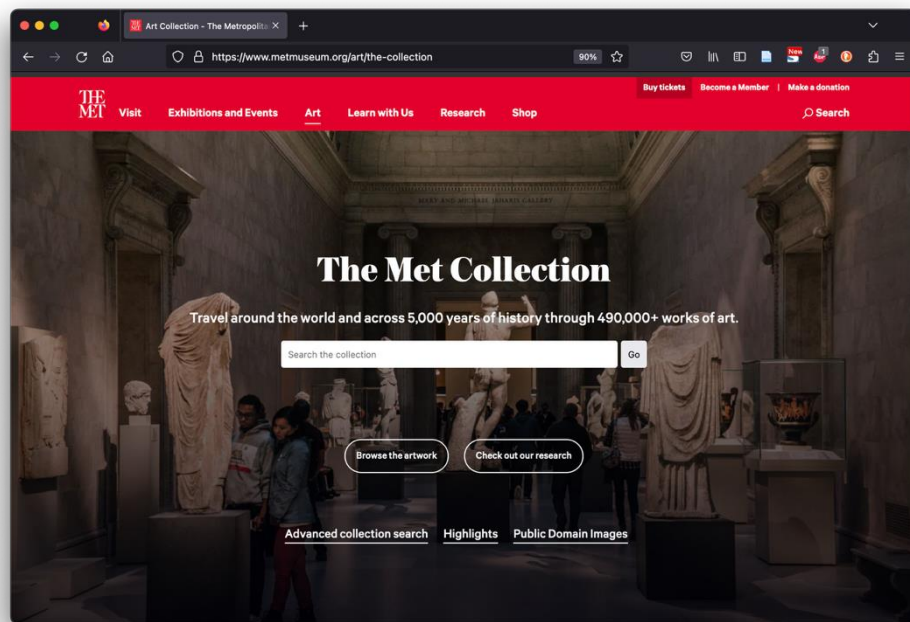
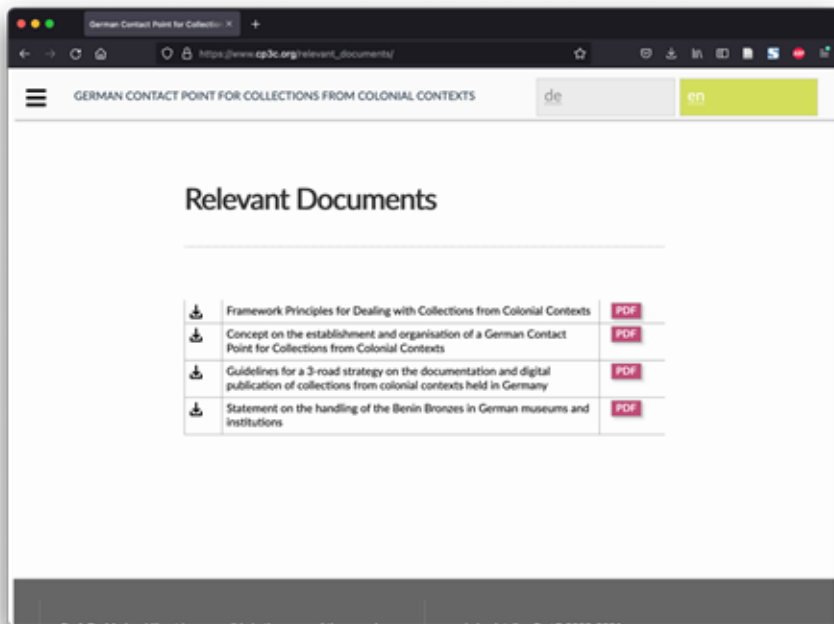
*See attached inventory for itemized description.

Manchester Museum, UK



- Embedding ICIP and IDSoV into collections management, data and access policies
- Updates to the open access policy and display of digital collections
- Implementing CARE Principles, Right of Reply, etc

Digital can facilitate more restitution



Data creation and publication is political

International Journal of Cultural Property (2023), 30: 105–137
doi:10.1017/S0940739123000127



ARTICLE

Open access violence: Legacies of white supremacist data making at the Penn Museum, from the Morton Cranial Collection to the MOVE remains

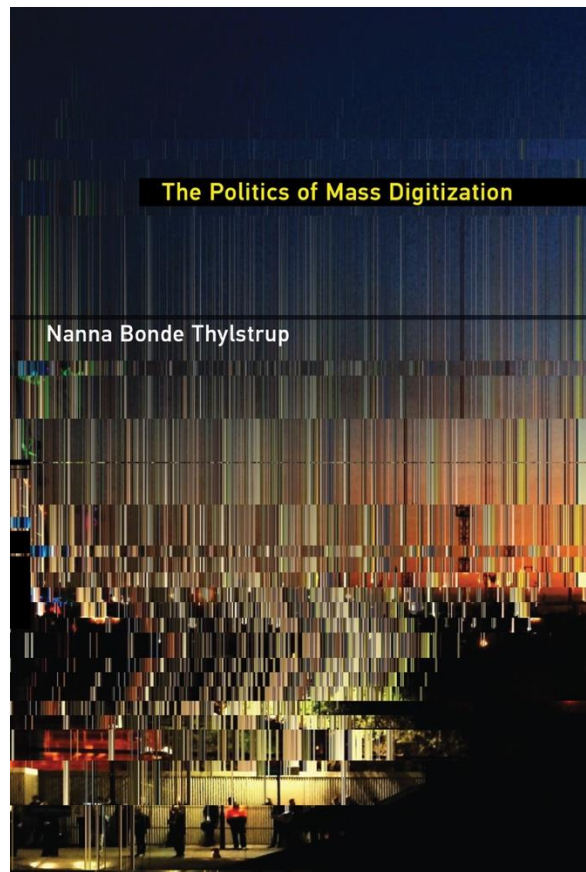
Lyra D. Monteiro 

Department of History Graduate Program in American Studies Affiliate Faculty, Africana Studies
Rutgers University, Newark, United States
Email: lyra.d.monteiro@gmail.com

Abstract

This article examines how openly sharing data online can continue the dehumanizing work of 19th century “collectors” who stole the bodies of colonized peoples. It addresses the ongoing controversies at the University of Pennsylvania Museum of Archaeology and Anthropology (“Penn Museum”), regarding the interlinked weaponization of over one thousand crania used by racial scientist Samuel George Morton, and the remains of two Black children murdered by the police in the 1985 MOVE bombing, and asks, how can descendant communities regain their kin and take control of the data the museum has extracted from them? And how can scholars and other heritage workers within colonial institutions support them?

Keywords: repatriation; archaeological ethics; museum ethics; bioanthropology; descendant communities; MOVE bombing; data ethics; medical racism; racial science



Data extraction via AI

Are AI Bots Knocking Cultural Heritage Offline?

MICHAEL WEINBERG

This report captures the impact that bots building datasets for AI model training are having on online cultural collections in early 2025.

glam-e lab

Are AI Bots Knocking Cultural Heritage Offline?

Michael Weinberg

June 2025

118

ENGELBERG CENTER
for Experimental Data & Policy

Table of Contents

1. Introduction

In late 2024, isolated reports began to appear from individual online cultural heritage collections. Those reports described servers and collections straining – and sometimes breaking – under the load of swarming bots. The bots were reportedly scraping all of the data from collections to build datasets to train AI models. This activity was overwhelming the systems designed to keep those collections online.

While concerning, it was not immediately clear if these reports represented a larger trend. Did they reflect the experience of most online collections? Were they outliers? Or early warning signs?

The GLAM-E Lab launched this report to try to answer those questions and start to fill in the bigger picture. It is especially focused on digitized collections and data connected to GLAMs – Galleries, Libraries, Archives, and Museums.

In April 2025, the GLAM-E Lab circulated a short survey to listservs for heritage and technology practitioners in GLAM, both in and outside of academia. That community is international and includes institutions on a range of scales, from flagship national archives to local museums.

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GLAM-E Lab Authors

MICHAEL WEINBERG

Our new AI strategy puts Wikipedia's humans first

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Our new AI strategy puts Wikipedia's humans first

By Chris Albon and Leila Zia • 30 April 2025

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TECH / ARTIFICIAL INTELLIGENCE / CREATORS

An AI-generated artwork's state fair victory fuels arguments over 'what art is'



The AI-generated artwork entered by Jason Allen into the Colorado State Fair
Image: [Jason Allen via Discord](#)

‘I’m not going to apologize for it,’ said the man who submitted the piece

By [James Vincent](#), a senior reporter who has covered AI, robotics, and more for eight years at The Verge.

Sep 1, 2022, 12:23 PM EDT | [0 Comments](#) / [0 New](#)



A game designer has sparked controversy after submitting an image created by an AI text-to-image generator to a state art competition and taking home first prize.

Jason Allen entered the artwork titled “Theatre d’Opera Spatial” in the “[Digital Arts / Digitally-Manipulated Photography](#)” category of the Colorado State Fair fine arts competition but created the piece using a

1 An OLED iPad Pro is the upgrade I've been waiting for

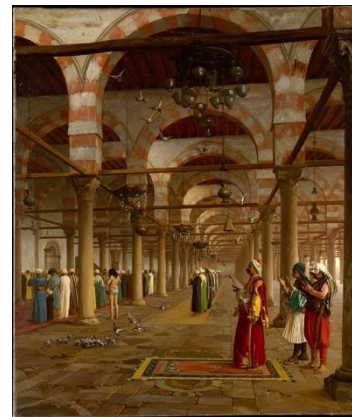
2 Humane officially launches the AI Pin, its OpenAI-powered wearable



Dance of the Almeh (1863), Jean-Léon Gérôme



La Grande Odalisque (1814), Jean-Dominique Ingres



Prayer in the Mosque (1871),
Jean-Léon Gérôme



Bonaparte Visiting the Plague Victims of Jaffa (1804),
Antoine-Jean Gros



Theatre d'Opera Spatial (2023), Jason Allen



Moorish Bath (1870),
Jean-Léon Gérôme

...and for what/whom?

Epic drought in Taiwan pits farmers against high-tech factories for water



By Emily Feng (NPR)
April 19, 2023 3:09 p.m.



For the third year in a row, rice farmers in southern Taiwan have not been allowed to plant their crops. Instead, the government is paying them subsidies to not grow rice this season, because it uses scarce water that semiconductor plants nearby need. Taiwan's rice farmers have been subsidized to some extent ever since Taiwan entered the World Trade Organization and agreed not to export its main crop.

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Environment ► Climate crisis Wildlife Energy Pollution

Ireland

Ireland's datacentres overtake electricity use of all urban homes combined

Statistics raise concerns that rise in demand for data processing driven by AI could derail climate targets



Jillian Ambrose Energy correspondent
Tue 23 Jul 2024 16:21 BST
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- 'It's just a rich man's playground now': how St Ives became patient zero of British overtourism
- I was raised in a utopian commune where children ran wild. Only years later did I realise how much danger came with that freedom

Datacentres supporting tech hubs used 21% of Ireland's electricity last year, an increase 20% on 2022 – all homes used 18%. Photograph: Erik Isakson/Getty Images/Tetra images RF

Ireland's energy-hungry datacentres consumed more electricity last year than all of its urban homes combined, according to official figures.

The country's **growing fleet of datacentres** used 21% of its electricity, an increase of a fifth on 2022, according to the Central Statistics Office.

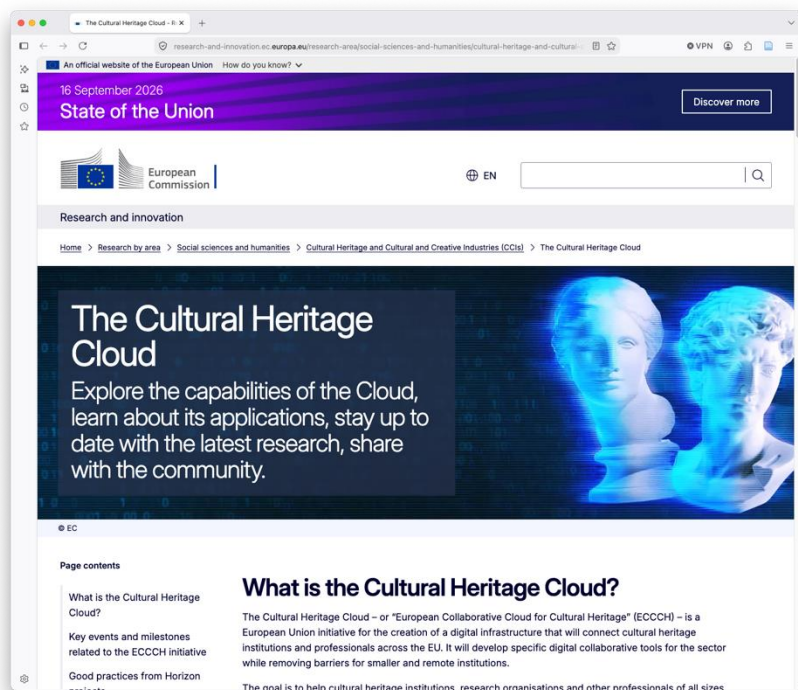
It was the first year that datacentres supporting the Irish tech hub surpassed the electricity used by homes in its towns and cities, which consumed 18% of the grid's total power last year.

Experts have raised concerns that the sudden surge in power demand driven by datacentres **could derail climate targets** in Ireland and across Europe.

Google, which has based its European headquarters in Ireland, said **earlier this month** that its datacentres risked delaying its green ambitions after driving a 48% increase in its overall emissions last year compared with 2019.

The rise in demand for data processing, driven by recent breakthroughs in artificial intelligence, could lead Ireland's datacentres to consume about 21%

...and for what/whom?



ICOM CODE OF ETHICS FOR MUSEUMS

P.7. Museum leaders should oversee the use of digital technologies in the museum, evaluating the benefits of these technologies and ensuring they cause no harm.

Museums should ensure that their use of digital media and digital technologies aligns with established standards, as well as with institutional goals and missions.

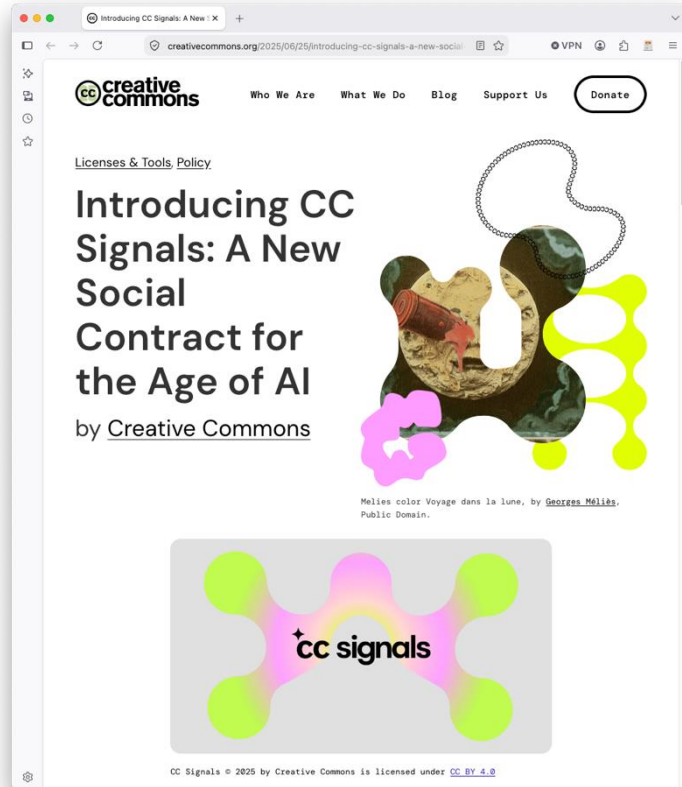
Everyone working in or with museums who uses these technologies should help minimise risk by taking into account their ethical implications and potential environmental impact, as well as their capacity for spreading inaccurate or false information. They should proceed cautiously, mindful of the impact of these technologies on intellectual property rights, Indigenous rights and data sovereignty.

Open Heritage Statement

u) Respect the rights, interests, protocols, practices, customs and traditions as recognized by international and community governance frameworks;

16. We acknowledge the need to transparently engage with, consult and involve communities of origin to enable free, prior and informed consent in decision-making processes involving both physical and digital heritage.
17. We recognize that there may be legitimate reasons not to digitize, allow access or openly share heritage, particularly where additional governance systems may apply.

...alternatives and/as friction



- Anti-Capitalist Software License
- Climate Strike License
- At The Root Ethical Source License
- ACAB License
- Decolonial Media License
- M15.js License



The ethics of refusal: Why the Indigenous 'no' matters in the age of artificial intelligence

Article

by Bronwyn Carlson and Tamika Worrell

Indigenous Protocol and Artificial Intelligence Working Group

About

The Indigenous Protocol and Artificial Intelligence (A.I.) Working Group develops new conceptual and practical approaches to building the next generation of A.I. systems.



thank you!

Andrea Wallace
andrea.wallace@warwick.ac.uk